

On January 28, 2026, Plaintiff Xue Fen Xie filed a Motion to Compel the Deposition of Defendant of Sheng Ping Lin. On July 9, 2026, Defendant Lin filed opposition noting that the deposition occurred on March 25, 2026. Plaintiff has not withdrawn the motion, but has also not filed any further request for sanctions. The Court finds the Motion is moot and declines to award sanctions.

9. 9:00 AM CASE NUMBER: C25-02163
CASE NAME: NICOLE THOMAS VS. PITTSBURG UNIFIED SCHOOL DISTRICT
***HEARING ON MOTION IN RE: JUDGMENT ON THE PLEADINGS**
FILED BY: PITTSBURG UNIFIED SCHOOL DISTRICT
TENTATIVE RULING:

Plaintiff Nicole Thomas filed her complaint on July 31, 2025 alleging wrongful termination against Defendant Pittsburg Unified School District (the District). On February 3, 2026, the District filed a Motion for Judgment on the Pleadings.¹ As of this date, Thomas has filed no opposition, although *before* this Motion was filed, on December 24, 2025, she submitted a “Reasons Not to Dismiss.” She also failed to appear at the case management conference on June 15, 2026, and an order to show cause issued.

Meet and Confer

The meet and confer requirement has been satisfied. (Jessica Adair Decl., ¶¶ 3-7; Code of Civ. Proc., § 439, subd. (a)(3)(A).) Defendant attempted to meet and confer and Plaintiff refused.

Legal Standard for Motion for Judgment on the Pleadings

Code of Civil Procedure section 438 permits a defendant to move for judgment on the pleadings on the ground that the complaint does not state facts sufficient to constitute a cause of action against the defendant. (Code Civ. Proc., §§ 438, subd. (b)(1), 438, subd. (c)(1)(B)(ii), and 438, subd. (c)(2)(A); *Stoops v. Abbassi* (2002) 100 Cal.App.4th 644, 650 [“Such motion may be made on the same ground as those supporting a general demurrer, i.e., that the pleading at issue fails to state facts sufficient to constitute a legally cognizable claim or defense. [Citation omitted.]”]; *See also Connerly v. Schwarzenegger* (2007) 146 Cal.App.4th 739, 746 [“ ‘A motion for judgment on the pleadings is the equivalent of a demurrer made after the pleadings are in.’ [Citation omitted.]”].) A motion for judgment on the pleadings may also be made to the complaint in its entirety. (Code Civ. Proc., § 438, subd. (c)(2)(A).)

The legal standards for determination of a motion for judgment on the pleadings are similar to the standards for determination of a demurrer. (*Eckler v. Neutrogena Corp.* (2015) 238 Cal.App.4th 433, 439.) The basis for judgment on the pleadings “shall appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice.” (Code Civ. Proc. § 438, subd.

¹ At times in briefing, the District refers to its motion as a demurrer. The Court will treat the Motion as it is captioned.

(d).) As in the case of a demurrer, the Court accepts all factual allegations of the complaint and “gives them a liberal construction.” (*Gerawan Farming, Inc. v. Lyon* (2000) 24 Cal.4th 468, 515-516.)

Consistent with the rules for determination of a demurrer, a motion for judgment on the pleadings must fully dispose of the challenged cause of action. (*Daniels v. Select Portfolio Servicing, Inc.* (2016) 246 Cal.App.4th 1150, 1167, overruled in part on other grounds by *Sheen v. Wells Fargo Bank, N.A.* (2022) 12 Cal.5th 905, 919; *PH II, Inc. v. Superior Court* (1995) 33 Cal.App.4th 1680, 1682-1683.) Further, “If the motion for judgment on the pleadings is granted, leave to amend must be granted unless the defect cannot be cured by amendment.” (*Hudson v. County of Los Angeles* (2014) 232 Cal.App.4th 392, 408.)

Background: The Complaint

The entirety of the allegations are as follows. Thomas alleges breach of contract because the essential terms of the contract are “leave request is a benefit of said contract between the two parties,” and there was “job abandonment when [Thomas] was applying for COVID-19 leave” on or around 8/19/2021.

Discussion

Failure to File Government Claim

To sue a public entity for money damages, a plaintiff must first present a written claim to the entity no later than six months after accrual of the cause of action. (Gov. Code §§ 911.2, 945.4; *City of Stockton v. Superior Court*, (2007) 42 Cal.4th 730, 741-742.) Thomas has not alleged that she did so at any time, notwithstanding within six months of August 19, 2021. She has also alleged no basis for relief from this requirement. For this reason alone, the Motion must be granted.

Breach of Contract

Public employment in the State of California is held by statute, not by contract. (*Miller v. State of California* (1977) 18 Cal.3d 808, 813.) A California public employee, whether civil service or not, cannot state a cause of action for breach of contract or breach of the implied covenant of good faith and fair dealing arising out of the public employment relationship. (*Shoemaker v. Myers* (1990) 52 Cal.3d 1, 23–24; *Hill v. City of Long Beach* (1995) 33 Cal.App.4th 1684, 1690.) The public employee’s remedies are limited to those provided by statute or ordinance. (*Hill v. City of Long Beach* (1985) 33 Cal.App.4th 1684, 1690.) Thomas’s sole cause of action is therefore unavailing.

Moreover, Thomas fails to allege any of the requirements for a breach of contract claim beyond a vague reference to a contract and that she applied for COVID-19 leave. It is not even clear what is meant by “job abandonment.” This is insufficient. (See, e.g., *D'Arrigo Bros. of California v. United Farmworkers of America* (2014) 224 Cal.App.4th 790, 800.)

Wrongful Termination

Although Thomas does not articulate a separate “wrongful termination” claim, she appears to be asserting such a claim. The District argues that she may not assert a “wrongful termination in violation of public policy”—aka *Tameny*—claim against a public entity such as the District. (See, e.g., (*Miklosy v. Regents of University of California* (2008) 44 Cal. 4th 876, 899.) While this is correct, it is not entirely clear the basis for her wrongful termination claim and whether it is based on statute. As it stands, there is no articulated cause of action for wrongful termination.

Leave to Amend

Leave to amend must be granted where there is a possibility of amendment. The District argues that no such possibility exists in this case. Given Thomas’s failure to engage with this case, it is difficult to determine whether (1) she filed but did not plead a government claim; (2) meant anything permissible by her “wrongful termination” language; and most importantly (3) intends to prosecute this case. Given her pro per status, the Court will permit her to amend the complaint but on a very short schedule. Leave to amend is granted but such amendment must be filed within 15 days of this hearing. If no such amendment is filed, the District may seek dismissal.

10. 9:00 AM CASE NUMBER: C25-02184

CASE NAME: NOORULLAH TARIN VS. TRI DELTA TRANSIT

***HEARING ON MOTION IN RE: QUASH PLAINTIFF’S SERVICE OF SUMMONS**

FILED BY: TRI DELTA TRANSIT

TENTATIVE RULING:

Before the Court is Defendant Tri Delta Transit’s motion to quash Plaintiff Noorullah Tarin’s service of summons. The motion relates to Plaintiff’s personal injury complaint filed on August 1, 2025.

Defendant moves to quash pursuant to Code of Civil Procedure section 418.10 on the grounds that the Court lacks jurisdiction over Tri Delta Transit.

For the following reasons, the motion is **granted**.

Legal Standard

California Code Civ. Proc., § 418.10 provides in relevant part that “A defendant . . . may serve and file a notice of motion . . . [t]o quash service of summons on the ground of lack of jurisdiction of the court over him or her.” (Code Civ. Proc. § 418.10(a).) Regardless of whether there are other grounds for personal jurisdiction, due process requires that an adjudication be preceded by proper notice. (*Mullane v. Central Hanover Bank & Trust Co.* (1950) 339 U.S. 306, 313.) “To establish personal jurisdiction, compliance with statutory procedures for service of process is essential...” (*Kremerman v. White* (2021) 71 Cal.App.5th 358, 370.)

When a defendant brings a motion to quash service of summons due to defective service, the burden shifts to the plaintiff to prove facts that give the court jurisdiction. (*Coulston v. Cooper* (1966) 245 Cal.App.2d 866, 868.) Code Civ. Proc., § 418.10(d) further states that “no motion under this section, or under Section 473 or 473.5 when joined with a motion under this section . . . shall be deemed a